

2023 Y L R 1940

[Lahore]

Before Masud Abid Naqvi, J

Syed MUHAMMD QASIM and others---Appellants

Versus

SHAMOON and others---Respondents

Writ Petition No. 37252 of 2015, decided on 11th October, 2021.

Specific Relief Act (I of 1877)---

---S. 9---Civil Procedure Code (V of 1908), O. VII, R. 11---Suit for recovery of possession--- Maintainability---Petitioners/defendants moved application under Order VII, Rule 11 of Civil Procedure Code, 1908---Trial Court dismissed the suit declaring the same as not maintainable, however, Appellate Court accepted revision moved by the respondents/plaintiffs---Contention of the petitioners/defendants was that the respondents/plaintiffs, being co-sharers, could only file a suit for partition--Validity---Record revealed that the respondents/plaintiffs, being co-sharers, were in possession of land who were dispossessed by the petitioners/ defendants---High Court observed that the respondents/plaintiffs could file suit for recovery of possession under S.9 of the Specific Relief Act, 1877 and the Trial Court could adjudicate the dispute between the parties by allowing them to produce oral as well as documentary evidence---No illegality or infirmity having been found in the impugned judgment passed by the appellate Court declaring the suit of the respondents / plaintiffs maintainable---Constitutional petition was dismissed, in circumstances .

Contractor Haji Muhammad Alam (deceased) through Legal heirs v. Shaukat Sultan and others 2009 SCMR 688 and Mst. Resham Bibi and others v. Lal Din and others 1999 SCMR 2325 ref.

Syed Muhammad Shah for Petitioners/Defendants.

Usama Ahmad for Respondents/ Plaintiffs.

ORDER

MASUD ABID NAQVI, J.---Brief facts necessary for the adjudication of this lis are that respondents/plaintiffs filed suit for recovery of possession under section 9 of the Specific Relief Act, 1877. The petitioners/defendants contested the suit by filing written statement and thereafter moved an application under Order VII, Rule 11, C.P.C. and the parties were ordered to advance arguments on the maintainability of the suit and vide order dated 05.04.2011, learned trial court dismissed the suit being not maintainable. Feeling aggrieved, the respondents/ plaintiffs filed a revision petition by challenging the said order and the learned revisional court accepted the revision petition and set-aside the order dated 05.04.2011 of the learned trial court vide judgment dated 14.09.2015. Being dissatisfied, the

petitioners/defendants have filed the instant writ petition and challenged the validity of the judgment passed by the learned revisional court.

2. I have heard the arguments of learned counsel for the parties and perused the available record as well as have minutely gone through the impugned judgment.

3. While relying on judgments reported by the honourable superior courts, learned counsel for petitioners/ defendants states that plaintiffs/ respondents/ sharers of joint khata can only file suit for partition against the petitioners/co-sharers, hence, respondents/ plaintiffs' suit was liable to be dismissed but the learned revisional court has not properly appreciated the questions of facts and law. While learned counsel for respondents/plaintiffs states that plaintiffs/ respondents/co-sharers were in possession of land and they were dispossessed by the petitioners/defendants, hence, respondents/ plaintiffs had two remedies to avail i.e. they can file suit for partition or suit under section 9 of the Specific Relief Act, 1877.

The record appended with the plaint as well as this civil revision, prima facie, supports stance of the plaintiffs/ respondents. The plaintiffs/ respondents can file suit for recovery of possession under section 9 of the Specific Relief Act and the learned trial court can adjudicate the dispute between the parties by allowing them to produce oral as well as documentary evidence. Reliance is placed on the judgments reported as Contractor Haji Muhanumul Alam (deceased) through Legal heirs v. Shaukat Sultan and others (2009 SCMR 688) and Mst. Resham Bibi and others v. Lal Din and others (1999 SCMR 2325).

4. Learned counsel for petitioners/ defendants has failed to point out any legal infirmity in the impugned judgment passed by the learned revisional court, therefore, this writ petition is dismissed.

MQ/M-8/L Petition dismissed.